

FEDERAL MARITIME COMMISSION

IGOR OVCHINIKOV, IRINA
RZAEVA, AND DENIS NEKIPELOV
Complainants

KAIRAT NURGAZINOV
Claimant

v.

MICHAEL HITRINOV A/K/A
MICHAEL KHITRINOV, EMPIRE
UNITED LINES CO., INC., AND
CARCONT LTD.

Respondents

Consolidated Docket
Nos. 15-11 and 1953(I)

Served: June 5, 2017

BY THE COMMISSION: Michael A. KHOURI, *Acting
Chairman*; Rebecca F. DYE, William P. DOYLE, Daniel B.
MAFFEI, *Commissioners*.

Order Granting Respondents' Motion for an Increase up to Eighteen Pages for Their Exceptions

This proceeding is before the Commission following the
Administrative Law Judge's March 9, 2017 Initial Decision
Granting Respondents' Motion for Judgment on the Pleadings. On
May 3, 2017, Complainants filed exceptions to the Initial Decision.

On May 16, 2017, Respondents filed a Motion for

Extension of Time and Enlargement of Page Limits, which requested a 29-day extension to file a response to the exceptions and permission to file an additional 18 pages above the 50-page limit. Respondents' Motion for Extension of Time and Enlargement of Page Limits (Respondents' Request for Extension) at 1-2. On May 22, 2017, Complainants filed Complainants' Response to Respondents' Motion for Extension of Time and Enlargement of Page Limits, requesting that the Commission deny Respondents' Request for Extension in its entirety. Complainants' Response to Respondents' Motion for Extension of Time and Enlargement of Page Limits at 2-3. On May 25, 2017, the Assistant Secretary granted Respondents' request for a 29-day extension of time to file a reply to exceptions,¹ which leaves the Commission to decide whether to allow Respondents to exceed the 50-page limit for their reply by 18 pages.

Respondents contend that they need an additional 18 pages to adequately respond to the numerous issues in the record.² Respondents' Request for Extension at 2. Respondents further state that justice requires that the Commission allow them to exceed the page limit as the Commission did for the Complainants in this matter. *Id.* In particular, Respondents note that the Commission granted Complainants an additional 18 pages for their exceptions.

On May 1, 2017, the Commission noted that the size of the record and procedural complexity of the proceeding justified Complainants' request for additional pages. Order Granting Complainants' Motion for an Increase up to Eighteen Pages for Their Exceptions at 3. For the same reasons, the Commission grants Respondents' request.

¹ The Commission has delegated the authority to extend the time to file exceptions and replies to exceptions to the Assistant Secretary. See 46 C.F.R. § 501.24(b).

² Respondents' counsel contends that he agreed to prepare Respondents' Reply to Exceptions contingent upon Respondents promptly paying him for his services, which they did as of May 22, 2017, and provided he is afforded sufficient time to prepare a reply. Respondents' Request for Extension at 1-2; Respondents' May 23, 2017 Status Report.

THEREFORE, IT IS ORDERED, That Respondents' request for additional pages is GRANTED. Respondents' reply is limited to a total of 68 pages and is due by June 23, 2017.

By the Commission.

Rachel E. Dickon
Assistant Secretary